



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 06/23/2026 - 09:00 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

June 23, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



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18-PRO-00763	Estate of JIEYUN ZHOU	NOTICE OF MOTION AND MOTION FOR RECONSIDERATION OF ORDER ENFORCING SETTLEMENT AGREEMENT UNDER CODE OF CIVIL PROCEDURE 664.6; AND APPOINTING ELISOR TO EXECUTE DOCUMENT UNDER CODE OF CIVIL PROCEDURE 128(A; D SUPPORTING DECLARATION; MEMORANDUM OF PO
Line 1	Petitioner: YUE, GENE (RUEPPEL, JOHN S.) Decedent: ZHOU, JIEYUN Objector: LEUNG, SOOK-LING (CHEN, CHRISTINA Y.) Objector: Leung, Wyn (Pro Se) Administrator: LUCAS, THOMAS A. (DURRANS, KATHLEEN A.)	Motion hearings
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) Parties are ordered to appear to set the Motion for Reconsideration on Judge Hill's calendar. Dates to avoid are: July 30, August 12, August 17 to September 7, and November 12 to December 15.		

23-PRO-00378	Estate of Jesse Robert Barber	FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT; PETITION FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS AND FOR REIMBURSEMENT OF ATTORNEYS' COSTS; PETITION TO RETAIN
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		RESERVE FOR CLOSING COSTS;
Line 2	Petitioner: Fernan, Minna (SCHULTZ, ANDREW K) Decedent: Barber, Jesse Robert Interested Party: Probate Advance, LLC Personal Representative: Fernan, Minna	Petition Hearing
Tentative Ruling: NO APPEARANCE Petition for Final Distribution was continued via the probate email to <u>October 13, 2026 at 9:00 am</u> at the request of Petitioner.		

24-PRO-00801	IN THE MATTER OF: HELEN SAMMUT FAMILY TRUST	NOTICE OF MOTION AND MOTION TO REOPEN THE CASE AND SEAL CONFIDENTIAL INFORMATION
Line 3	Petitioner: Sammut, Karen (MINTON, JOHN D.) Petitioner: Sammut, Karen Decedent: SAMMUT, HELEN Beneficiary: Sammut-Johnson, Sammy (LUND, RICHARD W.)	Motion hearings
Tentative Ruling: APPEARANCE OPTIONAL (Zoom allowed) Motion to Reopen the Case and Seal Confidential Information is GRANTED absent cogent objection. The Court makes the following findings under California Rules of Court, Rule 2.550(d): (a) the Company has an overriding interest in keeping its confidential financial information private; (b) the overriding interest supports sealing the record; (c) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (d) the proposed sealing is narrowly tailored; and (e) no less restrictive means exist to achieve the overriding interest. Petitioner shall submit an amended order which conforms to this ruling.		



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25-PRO-00580	IN RE: THE BETTY TAO REVOCABLE TRUST (AMENDED AND RESTATED ON DEC. 28, 2020)	RE: Remaining Petition for Removal and Petition for Permanent Injunction CROSS-PETITION TO VICKY KWAN'S PETITION TO REMOVE; CROSS-PETITION TO REMOVE VICKY KWAN AS TRUSTEE AND FOR RELATED RELIEF filed 01/06/26 CROSS PETITION TO VICKY KWAN'S PETITIONS FOR INJUNCTION TO REMOVE RENEE KWAN FROM TRUST PROPERTY, TO PREVENT RENEE KWAN FROM RECEIVING DESIGNATED GIFTS OR PURCHASE ESTATE PROPERTY filed 01/09/26
Line 4, 5, 6	Petitioner: Kwan, Vicky (FREEDMAN, MICHAEL E.) Decedent: TAO, BETTY Objector: Kwan, Renee (STEINER, PAUL J. SAIKI, ERIC HIDEO PECHERER, MICHAEL SAUL) Trustee: DUBOIS, VALERIE (ALAVI, AVID ELI) Other: Lee, Gordon (YEAGER, PHILIP EUGENE) Other: Lee, Stephen K. (YEAGER, PHILIP EUGENE) Other: Lum, Patricia (YEAGER, PHILIP EUGENE) Other: Sam, Anthony (YEAGER, PHILIP EUGENE) Other: Seto, David (YEAGER, PHILIP EUGENE) Other: Seto, Sharon (YEAGER, PHILIP EUGENE) Other: Winchester Plaza on the Row, LLC (YEAGER, PHILIP EUGENE) Other: Winchester Plaza on the Row, LLC	Status Hearing Petition Hearing Petition Hearing



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Tentative Ruling:

NO APPEARANCE

All matters set on June 23, 2026 at 9:00 am were CONTINUED to October 19, 2026 at 9:00 am via the Court's 6/16/2026 Ex Parte Order.

25-PRO-01360	IN THE MATTER OF DUTT FAMILY TRUST	VERIFIED PETITION FOR INVALIDATION OF TRUST ON GROUNDS OF LACK OF CAPACITY AND UNDUE INFLUENCE, ACCOUNTING, REMOVAL OF TRUSTEE, SURCHARGE, RETURN OF TRUST ASSETS, AND DAMAGES FOR FINANCIAL ELDER ABUSE. - Continued on 03/06/2026
Line 7, 8	Petitioner: Aira, Sangeeta Dutt (BARGER, KEVIN THOMAS WOODS, MICHAEL F.) Petitioner: Dutt, Anita (BARGER, KEVIN THOMAS WOODS, MICHAEL F.) Petitioner: Fowler, Shareena D. (BARGER, KEVIN THOMAS WOODS, MICHAEL F.) Decedent: DUTT, BISUN Decedent: Dutt, Shakuntala	Order to Show Cause Hearing Petition Hearing



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Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Respondent Pravina Dutt has failed to comply with the Court's previous order that she file an accounting. Moreover, she has failed to file any response to the petition. As such, the remainder of the unopposed petition is GRANTED absent cogent objection.

The Court orders the Disputed Documents be set aside as invalid on the basis of undue influence; fraud; and duress. The Court finds that the Disputed Documents and/or the donative transfers made therein for the benefit of Respondent are void as a result of fraud and/or undue influence, pursuant to Probate Code section 21380, et seq. Because Respondent was unsuccessful in rebutting the presumption of fraud or undue influence pursuant to Probate Code section 21380, the Court awards Petitioners all costs incurred in bringing this action, including reasonable attorneys' fees. The Court finds that Respondent shall be deemed to have predeceased Shakuntala pursuant to Probate Code sections 259 and 21386. The Court immediately imposes a constructive trust over the remaining property, including Trust and/or other assets wrongfully acquired by Respondent, as well as any and all income and interest derived therefrom, and all proceeds of any sale of any such real or personal property wrongfully acquired by Respondent. Pursuant to Probate Code Sections 850 and 856 Respondent shall return to the trust and/or convey title to each and every Trust asset wrongfully acquired by Respondent, whether as trustee, beneficiary, or as an individual, and/or currently held by any third party(ies), as well as any and all non-Trust assets wrongfully acquired by Respondent in any such capacity that had previously been owned or possessed by Shakuntala prior to the date Respondent executed the Disputed Documents. The Court finds that Respondent committed financial elder abuse against Shakuntala, pursuant to Welfare and Institutions Code Section 15610. As such, the Court orders that Petitioners be awarded enhanced remedies pursuant to Welfare and Institutions Code Section 15657, including reasonable attorneys' fees and costs. The Court orders that Respondent be precluded from using trust assets to defend against her wrongful actions. Respondent is immediately removed as Trustee of the Trust, and Anita Dutt is appointed as successor Trustee. The Court orders that Respondent return any trustee compensation taken by Respondent for either ordinary or extraordinary services rendered in connection with actions as Trustee. The Court orders that Petitioners be awarded twice the value of the property recovered in this action pursuant to Probate Code section 859 and Welfare and Institutions Code section 15657.5. The Court awards Petitioners all reasonable costs, including attorneys' fees, pursuant to Probate Code Sections 11003(b) and 17211(b). The Court declines to order exemplary or punitive damages as there higher burden of clear and convincing evidence is not met. Petitioner to submit a formal order consistent with this ruling.

Petitioner is to appear to set a prove-up hearing on damages on the Court's 2:00 pm calendar.



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25-PRO-01633	Conservatorship of Brenda J. Kelley	
Line 9	Proposed Conservatee: Kelley, Brenda J. (EISENBERG, MARTA C.) Petitioner: McGavran, Christine B. (BALAT, MEERA N. SCHRAMMEL, ISABELLA R) Proposed Conservator: McGavran, Christine B. Temporary Conservatee: Kelley, Brenda J. (EISENBERG, MARTA C.) Temporary Conservator: McGavran, Christine B.	Appointment of Conservator for Estate

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed) [Order Provided]

The Petition is GRANTED and the Court makes the following orders:

1. Christine B. McGavran is appointed conservator of the estate of Brenda J. Kelley, and a conservatorship is the least restrictive alternative to protect the conservatee.
2. The conservator is granted the authority to obtain a TrueLink card for the conservatee and to fund the TrueLink card with up to \$500.00 per month in the conservator's discretion for the conservatee's general expenditures and incidentals.
3. Bond be fixed at \$801,000.00.
4. A nonappearance hearing on the conservator's filing of the following documents is set for November 18, 2026 at 9:00 am:
 - a. Inventory and Appraisal (GC-040) within ninety (90) days of appointment;
 - b. Notice of Filing of Inventory & Appraisal and How to Object to the Inventory or the Appraised Value of Property (GC-042) within ninety (90) days of appointment;
 - c. Confidential Conservatorship Care Plan Parts 1&2 (forms GC-355 & GC-356) within one hundred twenty (120) days of appointment.
5. Pursuant to Probate Code §1830, the conservator shall file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
6. The conservator attend conservator education classes within six (6) months of being appointed conservator and a Proof of Completion shall be filed with the Court.
7. The Court orders that this conservatorship, absent a judicial finding of hardship, is subject to present and future assessments for the cost of the investigation, pursuant to Probate Code §1851.5. The Court orders payment of \$425.00, for the cost of the investigation and report for temporary conservatorship, and \$850.00, for the cost of the Court's investigation and report, from the conservatorship estate to the Superior Court of San Mateo County within ninety (90) days.
8. The conservatorship shall be reviewed in one (1) year.
9. Bond remains set at \$801,000.00.
10. The Court grants independent counsel's request for fees in the amount of \$1,805.00 and reimbursement of costs advanced in the amount of \$31.01, and independent counsel's request for discharge.



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26-PRO-00038	IN THE MATTER OF THE STRAUSS FAMILY TRUST, DATED MARCH 1, 2018	PETITION FOR ORDER CONFIRMING ASSET IS TRUST PROPERTY
Line 10	Petitioner: JOHNSON, ELIZABETH ANNE (KOLB, NATACHA) Decedent: STRAUSS, CATHERINE Decedent: STRAUSS, JON S.	Petition to Confirm Trust Assets (Heggstad)

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Order Confirming Asset is Trust Property is CONTINUED to August 25, 2026 at 9:00 am for Petitioner to file an amended proof of service address update that includes page one of the DE-115 filed 2/24/2026, and a proposed order. If Petitioner brings filed copies of these documents to the hearing, the Court intends to GRANT the Petition absent cogent objection.

26-PRO-00196	Estate of Jose Gonzalez	RE: Status of Settlement
Line 11	Petitioner: Gonzalez, Jose Arturo, JR (ABBAS, ANCA N.) Decedent: Gonzalez, Jose Objector: GONZALEZ, ARTURO (WILKINS, PAUL A.) Objector: GONZALEZ, RICARDO (WILKINS, PAUL A.) Proposed Personal Representative: Gonzalez, Jose Alberto, JR	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed) [Related matters at lines 11 and 12]

Parties are ordered to appear to provide status.



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26-PRO-00196-A	Estate of Jose Gonzalez	RE: Status of Settlement
Line 12	Petitioner: Gonzalez, Arthur (WEINBERG, JONATHAN D.) Petitioner: Gonzalez, Ricardo Decedent: Gonzalez, Jose Proposed Personal Representative: GONZALEZ, ARTHUR Proposed Personal Representative: GONZALEZ, RICARDO	Status Hearing
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) [Related matters at lines 11 and 12] Parties are ordered to appear to provide status. The Court notes that the Petition in the -A case does not list all persons mentioned in the will at #8, including Argentina Gonzalez VDA de Arias, and it does not include the names of the trustees of the Trust.		

26-PRO-00476	Estate of Bruce Alfred Hegedus	Continued from 05/15/26
Line 13	Petitioner: Tuttle Hegedus, Deborah L (CHANG, HANLEN J) Decedent: Hegedus, Bruce Alfred Proposed Personal Representative: Tuttle Hegedus, Deborah L Claimant: BANK OF AMERICA, N.A	Probate of Will and Letters Testamentary Hearing w/ ATA
Tentative Ruling: NO APPEARANCE The Petition is GRANTED absent cogent objection, as the Court has now received proof of service for all beneficiaries.		



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26-PRO-00638	Estate of Irmtraud Sieglinde Mayer	
Line 14	Petitioner: Yesson, Erik (MCFADDEN, MAUREEN S.) Decedent: Mayer, Irmtraud Sieglinde Proposed Personal Representative: Yesson, Erik	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE ORDERED Counsel to appear to advise whether or not PrC 8113 is applicable, requiring notice to a foreign consulate. The court is unclear if the Decedent was a foreign citizen, or if any property might pass to a citizen of a foreign country. If PrC 8113 is not invoked, the Petition will be GRANTED absent cogent objection, and bond will be waived.		

26-PRO-00639	Estate of ADRIANA KARWICK LARKIN	
Line 15	Petitioner: Lassahn, Tirzah Anne (POLLAK, COREY M.) Decedent: LARKIN, ADRIANA KARWICK Proposed Personal Representative: LASSHAN, TIRZAH ANNE	Letters of Administration Hearing with ATA
Tentative Ruling: NO APPEARANCE There is no Proof of publication on file. Additionally, there is inconsistent information as to the date of death of the Decedent: The petition lists DOD as 10/16/2024, but the declaration of Decedent's brother, wherein he nominates Petitioner to act as Administrator and purports to waive bond, lists the DOD as 2/27/2021. This shall be addressed in a supplemental declaration, which shall then be incorporated into the Petition as an exhibit. The Court will require the judicial council Waiver of Bond to be filed. The matter is continued to August 10, 2026 at 9:00 a.m.		

26-PRO-00640	Estate of GLORIA VILLAFUERTE CONNER	
Line 16	Petitioner: SAN MATEO COUNTY PUBLIC ADMINISTRATOR (CRUZ, PETER H SAN MATEO COUNTY ATTORNEY'S OFFICE) Decedent: CONNER, GLORIA VILLAFUERTE Proposed Personal Representative: SAN MATEO COUNTY PUBLIC ADMINISTRATOR	Letters of Administration Hearing with ATA



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Tentative Ruling:

NO APPEARANCE

The Petition is GRANTED absent cogent objection.

PRO091830	CONSERVATORSHIP OF ERIC RIDDLEY	* on 1/30/2026 Hearing Type changed from CRAB to CRB EIGHTEEN BIENNIAL REVIEW PETITIION FOR ORDER FOR PAYMENT OF FEES FOR CONSERVATORSHIP OF PERSON AND ESTATE
Line 17, 18	Conservatee: RIDDLEY, ERIC Conservator: SAN MATEO CO PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE)	Conservatorship Review - Biennial Accounting (Biennial) Conservator and Petition for Settlement

Tentative Ruling:

NO APPEARANCE

The conservatorship shall continue and be reviewed in two (2) years. The request to waive the account is approved. Fees in the amount of \$1,500 requested by the Conservator are granted and deferred until the Court determines sufficient funds exist. Fees in the amount of \$1,500 requested by the counsel for the Conservator are granted and deferred until the Court determines sufficient funds exist. The assessment amount of \$850.00 for the cost of the Court's investigation is ordered and deferred until the Court determines sufficient funds exist.



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PRO098089	CONSERVATORSHIP OF GEORGE GHILARDI	TWENTY-FIFTH AND FINAL ACCOUNT, PETITION FOR TERMINATION OF CONSERVATORSHIP, FOR DISCHARGE OF CONSERVATOR, AND WAIVER OF FEES
Line 19	Conservatee: GHILARDI, GEORGE Conservator: SAN MATEO CO PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE CRUZ, PETER H) Temporary Conservator: SAN MATEO CO PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE CRUZ, PETER H) Payor: Payor	Petition to Approve Final Account, Terminate/Discharge Cons.
Tentative Ruling: NO APPEARANCE Twenty-Fifth and Final Account, Petition for Termination of Conservatorship, for Discharge of Conservator, and Waiver of Fees is GRANTED absent cogent objection. Conservator is directed to file the following Judicial Counsel form: DE-295, Ex Parte Petition for Final Discharge and Order.		

Hearings Total: 19